

26SMCV02545 26SMCV02545

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-02

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The court will GRANT the application and continue the hearing to a date to be determined today.

The court is concerned about plaintiffs' statement that they received no notice of the hearing. The clerk's office filed a proof of electronic service rescheduling the hearing given plaintiffs' refusal to participate in the scheduled IDC. However, the court has seen that the proof of service by the clerk did not include the email addresses of either plaintiff. Given that, it is entirely possible that plaintiffs were not aware of the hearing date, and if not, that would mean that the hearings cannot go forward today consistent with due process.

The court notes that the 90 day period of rest that plaintiffs seek would expire on August 20, 2026. Given the court's schedule, it might well be that the hearing would not be until after that date. However, given that the hearing would be then, and plaintiffs' major objection to the discovery was that they needed additional time, they might wind up mooted out the motion by filing substantive verified and code-compliant responses prior to the next hearing date.